

TENTATIVE RULINGS

LAW & MOTION

DEPT C24

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting and then moving party is to telephone the clerk at (657)622-5224 with the status of all parties. If the moving party has submitted the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 10:30 a.m. on the day of the hearing. Generally, motions will not be continued or taken off calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

August 06, 2024
02:00 PM

If you want a transcript, you must provide your own court reporter

#	Case Name	Tentative
1	Rodriguez vs. Arthritis & Osteoporosis Medical Center, Inc. 20-01138157	Motion for Summary Judgment and/or Adjudication MP have sustained their initial, substantive burden and Plaintiff fails to sustain her burden to create a triable issue of material fact (the motion being unopposed), the unopposed motion is GRANTED. In the context of medical malpractice, “[w]hen a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence.” (Hanson v. Grode (1999) 76 Cal.App.4th 601, 607 [citing Munro v. Regents of Univ. of California (1989) 215 Cal.App.3d 977, 984-985].) Defendants provide the expert declaration of Dr. Fan who opines that “Defendants’ care and treatment rendered to

		David Rodriguez by GERALD Y. HO, M.D., LILY LIU, PA-C and ARTHRITIS & OSTEOPOROSIS MEDICAL CENTER, INC. complied with the applicable standard of care in the medical profession at all times and in all respects, including in 2018-2019. There was no medical evaluation or diagnosis that DR. GERALD HO or LILY LIU, PA-C overlooked or omitted.” Dr. Fan further declares, “It is my professional opinion to a reasonable degree of medical probability that no negligent/substandard act or omission on the part of GERALD Y. HO, M.D., Lily Liu, PA-C and ARTHRITIS & OSTEOPOROSIS MEDICAL CENTER, INC. causes or contributed to the death of David Rodriguez. Nothing that GERALD Y HO, M.D., LILY LIU, PA-C and ARTHRITIS & OSTEOPOROSIS, INC. did or failed to do contributed to or caused the death of the decedent.” The Court finds the medical records relied on by the expert to provide his opinions are properly before the Court pursuant to Garibay v. Hemmat (2008) 161 Cal.App.4th 735, 743. (ROA 122.) Therefore, Defendants sustained their initial, substantive burden. [CCP § 437c(p)(2).] Plaintiff did not file any opposition; and as such, fails to create a triable issue of material fact. Defendants to provide notice and proposed judgment.
2	Kepner vs. Oakmont Senior Living, LLC 22-01243539	1) Motion to Compel Further Responses to Special Interrogatories 2) Motion to Compel Further Responses to Special Interrogatories OFF CALENDAR – Notice of Settlement filed.
3	PTA Real Estate, LLC vs. Zito 22-01258334	1) Motion for Leave to Intervene 2) Case Management Conference